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Rcpt: 142000 Rec: 24.00
DS: 0.00 IT: 0.00
03/27/97 _____ Dpty Clerk

JED PITTMAN, PASCO COUNTY CLERK
03/27/97 10:59am 1 of 5
OR BK 3717 PG 1801

Prepared by and return to:
Joseph D. Edwards, Esquire
Annis, Mitchell, Cockey,
Edwards & Roehn, P.A.
P.O. Box 3433
Tampa, Florida 33601

DECLARATION OF CONSENT TO JURISDICTION OF COMMUNITY DEVELOPMENT DISTRICT AND TO IMPOSITION OF SPECIAL ASSESSMENTS

Trout Creek Properties, Inc., a Delaware corporation (the "Landowner"), is the sole owner of the land described in Exhibit "A" attached hereto and made a part hereof, except for certain tracts and proposed rights-of-way owned by Pasco County and by the Meadow Pointe II Community Development District (the "District"). The land described in Exhibit "A" is located within the boundaries of the District. The undersigned, intending that it and its respective successors in interest shall be legally bound by this Declaration, hereby declares, acknowledges and agrees as follows:

1. The District is, and has been at all times on and after October 7, 1994, a legally created, duly organized, and validly existing community development district under the provisions of Florida Statutes, Chapter 190 (1993). The members of the Board of Supervisors of the District (the "Supervisors") and officers as constituted from October 10, 1994, to and including the date of this Declaration were duly elected to their respective positions in accordance with all requirements of Federal and Florida law including the Constitution of the United States of America and of the State of Florida and had the authority and right to authorize, approve, and undertake all actions of the District approved and undertaken from October 10, 1994 to and including the date of this Declaration.

2. The Landowner, its heirs, successors and assigns, hereby confirms and agrees that the special assessments imposed by Resolution 97-1 duly adopted by the Board of Supervisors of the District on February 25, 1997, and Resolution 97-2 duly adopted by the Board of Supervisors on March 18, 1997, are the valid, legal, binding obligations of the Landowner, its heirs, successors and assigns, and the Landowner, its heirs, successors and assigns, in consideration of the improvements for which such assessments have been levied by the District, hereby covenant to pay such assessments, as and when due, but recourse against the

Landowner for failure to pay the assessments shall be limited to enforcement of the assessments as provided by law. The Landowner acknowledges and agrees that it was present at the meetings of the Board of Supervisors of the District at its meetings on February 25, 1997 and March 18, 1997, and further that it waived and does hereby waive any further notice which could be asserted as being applicable under provisions of Florida law in connection with such meeting.

3. The Landowner, its heirs, successors and assigns, hereby waives the right granted in Chapter 170.09, Florida Statutes (1993), to prepay the special assessments within thirty (30) days after the improvements are completed without interest, in consideration of the District's undertaking to make the Improvements.

THE DECLARATIONS, ACKNOWLEDGEMENTS, AND AGREEMENTS CONTAINED HEREIN SHALL RUN WITH THE LAND DESCRIBED IN EXHIBIT "A" HERETO AND SHALL BE BINDING ON PROPERTIES AND ON ALL PERSONS (INCLUDING CORPORATIONS, ASSOCIATIONS, TRUSTS, AND OTHER LEGAL ENTITIES) TAKING TITLE TO ALL OR ANY PART OF THE LAND, AND THEIR SUCCESSORS IN INTEREST, WHETHER OR NOT THE LAND IS PLATTED AT SUCH TIME. BY TAKING SUCH TITLE SUCH PERSONS SHALL BE DEEMED TO HAVE CONSENTED AND AGREED TO THE PROVISIONS OF THIS DECLARATION TO THE SAME EXTENT AS IF THEY HAD EXECUTED IT AND BY TAKING SUCH TITLE SUCH PERSONS SHALL BE ESTOPPED FROM CONTESTING, IN COURT OR OTHERWISE, THE VALIDITY, LEGALITY, AND ENFORCEABILITY OF THIS DECLARATION OR OF ANY OF THE ORDINANCES, RESOLUTIONS, AGREEMENTS, DOCUMENTS, AND OTHER MATTERS DEALT WITH HEREIN.

Dated effective as of the 26th day of March, 1997.

TROUT CREEK PROPERTIES, INC.,
a Delaware corporation

By: _____

Print Name: John M. Price

Title: Vice President

WITNESSES

_____
Print Name: STUART B. ARONOFF

_____
Print Name: Geraldine Burton

(Corporate Seal)

STATE OF CALIFORNIA

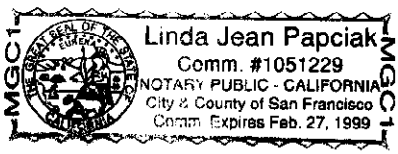
COUNTY OF SAN FRANCISCO

The foregoing instrument was acknowledged before me this 21st day of March, 1997, by JOHN M. PRICE, as VICE PRESIDENT of Trout Creek Properties, Inc., a Delaware corporation, on behalf of the corporation. He/~~She~~ is personally known to me ~~or produced _____ as identification~~ and did not take an oath.

Linda Jean Papciak
Notary Public
Print Name: LINDA JEAN PAPCIAK
Commission No.: 1051229
My Commission Expires: FEB. 27, 1999

(AFFIX NOTARY SEAL)

1551-045-0402097.01



MEADOW POINTE PARCEL 12

DESCRIPTION: A parcel of land lying in the Northeast 1/4 of Section 32 and the Northwest 1/4 of Section 33, all lying in Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

From the Northwest corner of said Northwest 1/4 of Section 33, run thence along the North boundary of said Northwest 1/4 of Section 33, the following two (2) courses: 1) S.89°34'31"E., 65.52 feet to the **POINT OF BEGINNING**; 2) continue, S.89°34'31"E., 1446.89 feet; thence S.00°25'29"W., 198.66 feet to a point of curvature; thence Southerly, 782.34 feet along the arc of a curve to the right having a radius of 1260.00 feet and a central angle of 35°34'31" (chord bearing S.18°12'45"W., 769.83 feet) to a point of tangency; thence S.36°00'00"W., 680.15 feet to a point of curvature; thence Southwesterly, 408.41 feet along the arc of a curve to the left having a radius of 1440.00 feet and a central angle of 16°15'00" (chord bearing S.27°52'30"W., 407.04 feet); thence N.70°15'00"W., 150.00 feet; thence NORTH, 385.81 feet; thence N.67°30'00"W., 328.01 feet; thence S.11°00'00"W., 174.13 feet; thence S.16°00'00"W., 81.72 feet; thence S.21°00'00"W., 81.72 feet; thence S.26°00'00"W., 81.72 feet; thence S.31°00'00"W., 405.98 feet to a point on a curve on the Northerly right-of-way line of (PROPOSED) COUNTY LINE ROAD PHASE "HI"; thence along said Northerly right-of-way line of (PROPOSED) COUNTY LINE ROAD PHASE "HI", Westerly, 101.48 feet along the arc of a curve to the right having a radius of 1490.00 feet and a central angle of 03°54'08" (chord bearing N.79°54'25"W., 101.46 feet) to the Northwest corner of said (PROPOSED) COUNTY LINE ROAD PHASE "HI", said point also being the Northeast corner of (PORPOSED) COUNTY LINE ROAD PHASE "GH"; thence along the Northerly right-of-way line of said (PROPOSED) COUNTY LINE ROAD PHASE "GH", continue, Westerly, 310.92 feet along the arc of said curve to the right having a radius of 1490.00 feet and a central angle of 11°57'21" (chord bearing N.71°58'41"W., 310.35 feet); thence N.32°00'00"E., 606.00 feet; thence N.06°00'00"W., 680.00 feet; thence N.42°00'00"E., 455.00 feet; thence NORTH, 393.79 feet to the **POINT OF BEGINNING**.

Containing 54.151 acres, more or less.

DDT-TC-
WP-100.01:MP12
WFS
VBR

November 11, 1996
(Revised) March 04, 1997

MEADOW POINTE PARCEL 14

DESCRIPTION: A parcel of land lying in the East 1/2 of Section 32 and the West 1/2 of Section 33, all lying in Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

From the Southwest corner of said Section 33, run thence along the West boundary of the West 1/2 of said Section 33, N.00°25'56"E., 1158.13 feet to the **POINT OF BEGINNING**; thence S.78°00'00"W., 316.43 feet; thence N.57°00'00"W., 483.96 feet; thence N.28°00'00"E., 304.45 feet; thence N.43°00'00"E., 437.12 feet; thence N.57°00'00"E., 335.85 feet to a point on the aforesaid West boundary of the West 1/2 of Section 33; thence along said West boundary, N.00°25'56"E., 110.37 feet; thence N.32°00'00"W., 349.09 feet; thence N.58°00'00"E., 221.81 feet to the Northwest corner of the Southwest 1/4 of said Section 33, run thence N.51°00'00"E., 169.00 feet; thence S.57°00'00"E., 169.00 feet; thence S.77°00'00"E., 66.27 feet; thence S.52°00'00"E., 118.16 feet; thence N.29°00'00"E., 153.73 feet; thence S.82°00'00"E., 60.00 feet; thence S.08°00'00"W., 1292.25 feet to a point of curvature; thence Southerly, 250.69 feet along the arc of a curve to the right having a radius of 1960.00 feet and a central angle of 07°19'42" (chord bearing S.11°39'51"W., 250.52 feet); thence N.74°40'18"W., 78.60 feet; thence N.79°30'44"W., 39.95 feet; thence S.78°00'00"W., 235.53 feet to the **POINT OF BEGINNING**.

Containing 27.267 acres, more or less.

OR BK 3717 PG 1805
5 of 5

DDT-TC-
WP-100.01:MP14
VBR

March 04, 1997